

HOUSE No. 1882

The Commonwealth of Massachusetts

PRESENTED BY:

Paul McMurtry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to promote free tastings of homemade products at farmer's markets.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/16/2025</i>

HOUSE No. 1882

By Representative McMurtry of Dedham, a petition (accompanied by bill, House, No. 1882) of Paul McMurtry relative to the liability of farmers' markets. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1674 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote free tastings of homemade products at farmer's markets.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 10 of chapter 40 of the General Laws, as appearing in the 2006 Official Edition,
2 is hereby amended by adding the following paragraph:-

3 Any person who displays, exhibits or sells their homemade or home grown products or
4 produce within the commonwealth at public farmers' markets and farm stands shall be allowed
5 to provide customers with taste samples of their products without incurring any liability.
6 Conformity to sanitary health codes and requirements such as sinks and heating apparatus shall
7 not be applicable under this paragraph.